

		Plaintiff concedes this point but argues he may recover fees incurred in consultations with a retained attorney. Plaintiff is correct. (See <i>Mix v. Tumanjan Development Corp.</i> (2002) 102 Cal.App.4th 1318, 1324.) Defendant is ORDERED to file an answer within 10 days. Clerk to give notice.
10	Wang vs. Mayenne Medical 30-2025-01532205-CU-MM-CJC	Demurrer to Complaint Defendants Mayenne Medical dba Skinspire Laser & Skin Clinic, Dai Xiaoxiao, Liang Ma, and Hyunseok Kim's demurrer to Plaintiffs Yisha Wang and Willie Hungyi Wei's complaint is OVERRULED. <u>First, third, and fourth causes of action for battery and breach of fiduciary duty</u> Redundancy of a cause of action is not grounds for sustaining a demurrer. (See <i>Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC</i> (2008) 162 Cal.App.4th 858, 889-890.) <u>Fifth cause of action for fraud</u> Plaintiffs sufficiently allege a cause of action for fraud. (Compl. ¶¶ 77-88.) Motion to Strike Complaint Defendants Mayenne Medical dba Skinspire Laser & Skin Clinic, Dai Xiaoxiao, Liang Ma, and Hyunseok Kim's motion to strike portions of Plaintiffs' complaint is GRANTED. Plaintiffs' allegations are directly related to the manner in which Defendants provided professional medical services. (See <i>Central Pathology Service Medical Clinic, Inc. v. Superior Court</i> (1992) 3 Cal.4th 181, 191-192.) As such, Plaintiffs were required to obtain an order from the Court allowing them to seek punitive damages pursuant to Code of Civil Procedure section 425.13. The Court ORDERS Defendants Mayenne Medical dba Skinspire Laser & Skin Clinic, Dai Xiaoxiao, Liang Ma, and Hyunseok Kim to file an answer within 10 days. Clerk to give notice.
11	Young vs. Ford Motor Company	Motion for Summary Adjudication